

What You Can and Cannot Appeal

*The follow-up to “What the New Law Says” — read from the appeals regulation itself,
with one gap named plainly*

Applications and Appeals (Ministerial) Regulation (AR 89/2007)
Assured Income for the Severely Handicapped Act, as amended by Bill 12

The Alberta Disability System Breakdown

St. Albert, Alberta | July 2026
albertadisabilitybreakdown@outlook.com

Why this is a separate document

Our main breakdown left the appeal question for a follow-up, on purpose. We would not print a list of what you can and cannot appeal until we had read the appeals regulation ourselves, word for word. We have now read it. This is that document.

It comes with a warning we are putting up front rather than burying, because it matters: the only published version of the appeals regulation is out of date. It has not been updated for the new programs. We will show you exactly what it says, exactly where it is silent, and we will not fill the silence with a guess.

The state of the published law, plainly

The appeals regulation on the public record is the **Applications and Appeals (Ministerial) Regulation, AR 89/2007, King's Printer consolidation current as of April 1, 2022.**

It still refers to the old section of the Act (section 10) that Bill 12 replaced, and it cross-references a benefits regulation that was repealed on July 2, 2026.

So the document that tells a disabled person which decisions they may appeal has not been brought up to date for the system that now governs them. Everything below is read against that published version, with every gap named.

Three different things, three different answers

“ADAP has no appeals” is repeated everywhere, and it collapses three separate things that split three separate ways. Keeping them apart is the whole point of this document.

What it is	Can you appeal it?
1. The move — being transferred from AISH to ADAP	No. Barred by the Act itself.
2. A benefit cut or change — e.g. an employment-related cut under section 15(4)	Yes, on the published regulation — it is not on the exempt list.
3. Certain specific denials — medical supplies, special diets, repayment demands, debt collection	No. These are named on the exempt list.
4. The medical determination — the AISH Medical Review Panel finding you are not eligible for AISH	Unclear. Government says final. The regulation that would make it final is not in the published version. See the open question below.

The right to appeal still exists

Bill 12 did not abolish the right of appeal. It moved it into a new section of the Act, and it kept the same rule it always had: you can appeal a director's decision unless a regulation exempts it.

A person affected by a decision of a director ... may appeal that decision if (a) the decision is not exempt from appeal under the regulations, and (b) the appeal is made in writing to an appeal panel within 30 days ...

AISH Act, new section 10.1(1), added by Bill 12 (SA 2025 c20), in force July 2, 2026.

So the whole question turns on one thing: which decisions the regulations mark as “exempt from appeal.” That list is section 6 of the appeals regulation. Here it is, in full.

What the exempt list says, in full

The published exempt list has five items. This is the complete text, word for word.

The decisions of a director that may not be appealed to an appeal panel ... are: (a) a decision ... with respect to a personal benefit under section 8(1)(a) and (b) of Schedule 3 [the General Regulation]; (b) a decision to refuse, vary, suspend or discontinue a benefit under section 5(1)(b)(ii) ...; (c) a decision to require repayment of a benefit or an assignment ...; (d) a decision with respect to collecting a debt due, including an amount repayable under a repayment agreement; (e) a decision to deduct an amount owed ... from an underpayment ...

Applications and Appeals (Ministerial) Regulation, AR 89/2007, section 6. King's Printer consolidation current as of April 1, 2022 (consolidated up to AR 240/2021).

In plain words, what those five exemptions shut out

- (a) Medical supplies and equipment essential to manage your condition, and special diets or supplements. This is the compression-stockings and mobility-supply denial. It cannot be appealed.
- (b) A cut for not claiming or assigning a federal benefit such as CPP or OAS.
- (c) A demand that you repay a personal benefit, or provide an assignment.
- (d) The method the government uses to collect a debt from you.
- (e) Deducting a claimed debt out of money the program in fact underpaid you.

What is NOT on the list — and therefore can be appealed

An employment-related benefit cut under section 15(4) — refusing, reducing or terminating work, or not using an employment support — is **not named** anywhere in the exempt list. On the published regulation, it is appealable.

A decision applying your self-employment income to a single month instead of spreading it — the clause with two opposite outcomes — is also **not on the list**. On the published regulation, it is appealable too.

We had earlier suggested those two might be exempt. Reading the regulation ourselves, they are not. We would rather correct ourselves in writing than leave a wrong impression standing.

The one open gap: the medical determination

Here is the thing we will not paper over. The government says, in several places, that the AISH Medical Review Panel decision — the one that decides you are not eligible for AISH — is final and cannot be appealed.

But that exemption is not in the published appeals regulation. The five-item list above does not contain it. And the old section of the Act the regulation still points to has no provision that would create it.

So one of two things is true, and we cannot yet tell which

Either the appeals regulation **was amended** in the 2026 package to add this exemption, and the public database has not caught up —

or the exemption is being **asserted in policy ahead of the regulation** that would authorise it.

We are not going to bridge that gap with a guess. It is either a publishing delay or an unsupported assertion, and which one it is can only be settled against the current consolidation of the appeals regulation — a document that, as of this writing, we have not been able to obtain. When we do, we will publish the answer.

There is one further wrinkle worth knowing. A decision by an adjudicator **not to refer** your file to the Medical Review Panel appears, from the government's own material, to be appealable to the Medical Appeal Panel — even though the Panel's eventual decision is said to be final. So the line between what is and is not appealable in the medical stream is finer than “anything to do with the panel is final,” and drawing it precisely also needs the current regulation.

If you are going to appeal, the things that decide it

Thirty days. The appeal must be in writing to the appeal panel within 30 days of being notified of the decision. If you are late, the Minister can extend the time for good cause, but do not rely on that — file on time.

The rule that catches almost everyone

The appeal panel **must not consider any information other than what the program already had** when it made the decision you are appealing.

So if your best evidence is a document the program did not have, the panel cannot look at it. Get that evidence to the program **first**, in writing, during the Administrative Review, and ask them to confirm in writing that it was considered.

That is the single most common way a strong appeal is lost — the right evidence, standing in the wrong place.

Two panels now hear appeals. The Citizen's Appeal Panel hears non-medical decisions, including a decision to change or stop your benefits, and its hearings are usually by phone or video. The Medical Appeal Panel hears medical eligibility, and those hearings are by document review only — you never speak to it. Hearings are closed and not recorded, so bring a support person to take notes. Hearings are conducted in English; an interpreter is available if you request one as an accommodation, as early as you can.

Everything in this document is quoted from the appeals regulation or the Act, by section, or is named plainly as an open question we cannot yet answer from published law. Where we had earlier said more than the regulation supports, we have corrected it here. We will publish an update the moment the current appeals regulation is in hand.

The Alberta Disability System Breakdown — Advocate

St. Albert, Alberta | July 2026 | albertadisabilitybreakdown@outlook.com